		The Court hereby sets an order to show cause on September 8, 2026, at 9:00 a.m. in Department N14, why monetary sanctions should not be imposed on counsel for Plaintiff, The Vartazarian Law Firm, Steve Vartazarian, Matthew J. Whibley, and Margaret Gabuchian, and counsel for the Reeves Defendants, Tyler & Mendes, LLP, and David M. Frishman, pursuant to Code of Civil Procedure section 177.5.
106	Cruz v Carillo, 2024-01394635	MOTION FOR PARTITION OF PROPERTY Plaintiff Freddy Jonathan Cruz moves for an interlocutory judgment of partition by sale pursuant to Code of Civil Procedure section 872.010 et seq. Plaintiff also requests that a referee be appointed to conduct the sale, pursuant to Code of Civil Procedure section 873.010 et seq. In light of the mandatory settlement conference scheduled for Friday, August 28, 2026, the Court will not post a tentative ruling in this case. If the matter does not settle, the Court will provide a tentative ruling to the parties before the hearing on August 31, 2026.
107	Doe v. Goodwill of Orange County, 2023-01341615	MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT – GRANTED Defendant Sodexo Management, Inc. (Sodexo) moves for an order determining that the settlement between Plaintiff Jane Doe (Plaintiff) and Sodexo was made in good faith pursuant to Code of Civil Procedure section 877.6. Defendant Goodwill of Orange County (Goodwill) opposes the motion. The determination of a good faith settlement under section 877.6 require this Court to consider factors including: • A rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, • The amount paid in settlement, • The allocation of settlement proceeds among plaintiffs,

		• A recognition that a settlor should pay less in settlement than he would if he were found liable after a trial, • The financial conditions and insurance policy limits of settling defendants, and • The existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants, and • The settling defendant's potential liability for indemnity to a non-settling defendant. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.) The party opposing the motion for good faith settlement bears the burden of proof. (§ 877.6(d).) "The party asserting the lack of good faith . . . should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such demonstration would establish that the proposed settlement was not a 'settlement made in good faith' within the terms of section 877.6." (Tech Bilt, supra, 38 Cal.3d at p. 499-500.) Amount Paid in Settlement Plaintiff and Sodexo have reached a settlement, and provided the amount of that settlement to this Court. (Rodolff Decl., ¶¶ 3-4; Rodolff reply decl., Ex. A.) Rough Approximation of Plaintiff's Total Recovery and Settlor's Proportionate Liability The most important factor is the settling party's proportionate liability. (Mattco Forge, Inc. v. Arthur Young & Co. (1995) 38 Cal.App.4th 1337, 1350.) The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor's liability to be. (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1262.) Sodexo has provided information indicating that the mean recovery via settlement or verdict for a plaintiff alleging similar claims in Orange County is lower than

		the amount Sodexo has agreed to settle for. (Rodolff Decl., ¶ 5.) The Court has also received copies of discovery responses explaining the nature and extent of the damages suffered by Plaintiff. (Supp. Rodolff Decl., ¶¶ 4-16, Exs. A-D.) Goodwill does not dispute the evidence as to mean recovery for a plaintiff in a sexual assault case in Orange County, and does not show that Plaintiff's recovery in this case should be higher. Goodwill's assertion that its counsel received an opening settlement demand from Plaintiff's counsel that was significantly higher for a global settlement of this matter provides no real basis for approximating Plaintiff's damages. (Hopson Decl., ¶ 9.) "[A] plaintiff's claims for damages are not determinative in finding good faith; rather, the court is called upon 'to make a "rough approximation" of what the plaintiff would actually recover' [citation], with the evaluation to be made 'on the basis of information available at the time of settlement.' [Citation.]" (Dole Food Co. Inc. v. Superior Court (2015) 242 Cal.App.4th 894, 904.) The Court finds that the settlement amount reflects Sodexo's proportionate liability, based on facts currently known, the fact that only a single cause of action was asserted against Sodexo, the limitations on Sodexo's liability because it was the employer of neither Plaintiff nor Defendant Banuelos was employed by Sodexo, the investigation of a prior sexual harassment claim which Sodexo concluded was an isolated incident between two people who had a long-term friendship, and Sodexo's lack of notice or knowledge of the assault alleged by Plaintiff.. (Rodolff Decl., ¶ 7; Miller decl., ¶¶ 4-5.) The Court finds that the settlement is within the "ballpark." Sodexo to give notice.

108	Grant v. Bank of America	MOTION TO DEEM VEXATIOUS LITIGANT – GRANTED IN PART AND DENIED IN PART Defendant Bank of America, N.A. ("Defendant" or "BANA") moves for an order declaring plaintiffs Gavin Grant and Michelle Grant ("Plaintiffs") vexatious litigants, requiring them to post a security within 30 days, and prohibiting Plaintiffs from filing any new litigation in California without first obtaining leave. Defendant seeks judicial notice of the underlying Deed of Trust and various court records filed in the prior litigation actions. Plaintiffs argue judicial notice is not proper because Defendant has offered no declaration authenticating any of the exhibits attached to the request. They do not argue, however, that any of the exhibits are not what they are purported to be. Under Evidence Code section 453, Defendant is only required to furnish the Court with sufficient information to enable it to take judicial notice of the matter submitted. Defendant's RJN provides a brief description of each exhibit and the legal authority pursuant to which judicial notice is requested. The Court finds this to be sufficient and the RJN is GRANTED. Plaintiffs' objection to the Declaration of Emily J Wagner is SUSTAINED, as the Declaration was not executed under penalty of perjury under the laws of the State of California. (Code Civ. Proc., § 2015.5.) Defendant argues Plaintiffs are vexatious litigants because they have filed four separate other lawsuits involving the same property, none of which has survived beyond the pleading stage, re-litigating the same causes of action and issues that have already been decided. Thus, Plaintiffs should be required to post security in the amount of $18,900 prior to proceeding with this litigation. Defendant also argues that a prefiling order against Plaintiffs should issue pursuant to Code of Civil Procedure section 391.7. Defendant relies on section 391(b)(2) and (b)(3). "[O]n a motion for an order requiring a vexatious litigant to post security, the moving party must make a showing

		that there is no reasonable likelihood of the plaintiff prevailing in the action against that defendant. This showing is ordinarily made by the weight of the evidence but a lack of merit may also be shown by demonstrating that the plaintiff cannot prevail in the action as a matter of law." (Golin v. Allenby (2010) 190 Cal.App.4th 616, 642.) "Sections 391, subdivision (c), 391.1, and 391.3, read in pari materia, require a vexatious litigant to post security, which includes reasonable attorney fees, when he fails to establish a reasonable probability of prevailing against the defendant." (Singh v. Lipworth (2005) 132 Cal.App.4th 40, 45.) The entry of a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts without first obtaining leave also requires a finding that the litigant is vexatious. (See Code Civ. Proc., § 391.7(a).) Here, Plaintiffs are contesting a Notice of Trustee Sale in the foreclosure of their home by Clear Recon Corp. acting as trustee on behalf of beneficiary BANA. Plaintiffs have jointly filed one prior state court action (the 2023 action) and Gavin has separately filed two prior state court actions and one prior federal court action, all of which sought the same relief sought here: to prevent the foreclosure on their home. In granting Defendant's Ex Parte Application for an Order Expunging Lis Pendens, the Court previously found that Plaintiffs cannot establish the probable validity of any of their claims here in light of the failure of any of their prior actions to raise a meritorious, actionable claim. On this Motion, the Court similarly finds that Plaintiffs have no reasonable likelihood in prevailing in this action against Defendant. Plaintiffs argue that their action is not barred by res judicata because they are asserting a new theory based on lack of authority and based on new wrongful conduct which occurred after the final determinations of the prior cases. This argument is not persuasive. "California's res judicata doctrine is based upon the primary right theory" and " '[t]he primary right is simply the plaintiff's right to be free from the particular injury

		suffered.' [Citation.]" (Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904.) Here, as Judge Craig Griffin held on sustaining BANA's Demurrer to the FAC in the 2023 action, Plaintiffs have already contended in prior litigations that they should be free from a particular injury—the initiation of foreclosure proceedings. Because this action seeks to prevent injury based on the same primary right, res judicata applies. Further, Plaintiffs' FAC alleges that the 2017, 2018, and 2023 judgments are void for numerous reasons. (FAC ¶¶ 57-66.) These allegations demonstrate that Plaintiffs are attempting to relitigate the validity of those prior final determinations as well as the same legal issues. Thus, Plaintiffs' argument that they are raising new issues rather than attempting to relitigate the same issues already determined falls flat and the Court finds that Gavin is a vexatious litigant. Plaintiffs' argument that the Motion must be denied as to Michelle is, however, well taken. Michelle was only named a plaintiff in the 2023 action. Because the statutes require "repeated attempts" to relitigate, the Court finds that her filing of the instant action does not qualify her as a vexatious litigant. (See Goodrich v. Sierra Vista Regional Medical Center (2016) 246 Cal.App.4th 1260, 1266 [holding as few as three motions may form the basis for a vexatious litigant].) Thus, the Motion is GRANTED as to Gavin only. Because the Court sustained the objections to attorney Wagner's declaration, it has no evidence before it supporting a request for security in a specific amount. In its discretion, the Court determines that $5,000 is an appropriate amount. Thus, pursuant to Code of Civil Procedure sections 391.1 and 391.3, Gavin Grant is ORDERED to furnish security in the amount of $18,900 within 30 days of the date of this order. Further, pursuant to Code of Civil Procedure section 381.7, Gavin Grant is prohibited from filing any new litigation in the courts of this state in propia persona without first obtaining leave of the presiding justice or

		presiding judge of the court where the litigation is proposed to be filed. Moving party to give notice.
109	Kersten, M.D. v. Alicia Surgery Center, 2026-01553019	DEMURRER – MOOT
110	Kish v. Hyundai Motor America, 2026-01560834	MOTION TO COMPEL ARBITRATION – DENIED Defendant Hyundai Motor America ("Defendant") moves for an order compelling plaintiff Jennifer C. Kish ("Plaintiff") to arbitrate all claims raised in this action and staying this action pending resolution of arbitration pursuant to two arbitration clauses contained in the Owner's Handbook & Warranty Information (Owner's Handbook) and the Bluelink Connected Services Agreement (CSA). " 'Under "both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate." ' " (Long v. Provide Commerce, Inc. (2016) Cal.App.4th 855, 861.) " '[G]eneral principles of contract law determine whether the parties have entered a binding agreement to arbitrate.' " (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.) " 'Mutual assent, or consent, of the parties "is essential to the existence of a contract" [citations], and "[c]onsent is not mutual, unless the parties all agree upon the same thing in the same sense" [citation]. "Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings." ' " (B.D. v. Blizzard Entertainment, Inc. (2022) 76 Cal.App.5th 931, 943 ("Blizzard").)